



Book	Policy Manual
Section	BOARD POLICIES UNDER CONSIDERATION
Title	Vol. 41, No. 2 - January 2023 Revised/Replacement VOLUNTEERS
Code	po8120
Status	First Reading

Revised/Replacement Policy - Vol. 41, No. 2

3120.098120 - VOLUNTEERS

The Board of Education recognizes that certain programs and activities can be enhanced through the use of volunteers who have particular knowledge or skills that will be helpful to members of the professional staff responsible for the conduct of those programs and activities.

The Superintendent shall be responsible for recruiting community volunteers, reviewing their capabilities, and making appropriate placements. ~~The District~~ ~~S/He~~ shall not be obligated to make use of volunteers whose abilities are not in accord with District needs.

Volunteers for Athletic Activities

Volunteers who direct, supervise, or coach a student activity program that involves athletics, routine or regular physical activity, or activities with health and safety considerations may be required to obtain a pupil activity permit issued by the Ohio Department of Education (ODE). As provided in ODE guidance, the District shall determine which staff members need to have a permit. However, in accordance with OHSA General Regulations, coaches, paid and/or volunteer, in grades seven (7) through twelve (12) who do not possess the Pupil Activity Program/Coaching Permit shall not be permitted to coach at any level at an OHSA member school. Individuals who have applied for a Permit but who have not yet been issued a valid credential shall not be permitted to interact with athletes, even under the supervision of a credentialed coach, until the Pupil Activity Permit number is formally issued.

These volunteers will submit to a background check and take courses as may be required by the Ohio Department of Education.

The cost of obtaining the permit will be ~~() at the Board's expense [OR] () at the volunteer's expense~~ **[END OF OPTION]**.

General Requirements

The Superintendent is to inform each volunteer that ~~they~~ ~~s/he~~:

- A. ~~are~~ ~~is~~ required to abide by all Board policies and District guidelines while on duty as a volunteer (including, but not limited to, the volunteer's obligation to keep confidential and not release or permit access to any and all student personally identifiable information to which ~~they are~~ ~~s/he is~~ exposed except as authorized by law);
- B. will be covered under the District's liability policy but the District can not provide any type of health insurance to cover illness or accident incurred while serving as a volunteer, nor is the person eligible for workers' compensation;
- C. will be asked to sign a form releasing the District of any obligation should the volunteer become ill or receive an injury as a result of ~~their~~ ~~his/her~~ volunteer services;
- D. may not accept compensation from any third party or source, including, but not limited to, booster, parent, or other District support organizations, for the performance of ~~their~~ ~~his/her~~ official duties as a volunteer on behalf of the Board.

Furthermore, the Superintendent shall inform all volunteers who work or apply to work unsupervised with children on a regular basis of the need to display appropriate behavior at all times, and that

[NOTE: CHOOSE OPTION #1 OR #2]

[☒] OPTION #1

they may be required to provide a set of fingerprints at any time so that a criminal records check can be conducted. If a criminal records check is then conducted, it will be done as a condition of continued service as a volunteer and will be at ~~() the Board's~~ **[OR] (X) the volunteer's [END OF OPTION]** expense.

~~[] [OPTION #2]~~

~~they will have to provide a set of fingerprints so that a criminal records check can be conducted () at the Board's expense () and that they will have to pay the costs associated with the criminal records check [END OF OPTION] either before they can begin their duties, or as a condition of continued service as a volunteer at the discretion of the Board.~~

[NOTE: END OF OPTIONS]

If a criminal records check indicates that a volunteer has been convicted of or pleaded guilty to any of the offenses listed below and/or described in R.C. 109.572 (A)(1), **[CHOOSE ONE (1) OF THE OPTIONS BELOW, SEE NOTE]**

(X) the volunteer will be informed either that the Board is no longer interested in maintaining **their/his/her** volunteer service or that the volunteer will be assigned to duties for which **they/s/he** will not work unsupervised with children.

~~() that volunteer will be informed that the Board will be notifying the parents of school children that they have/s/he has been convicted of one (1) of the offenses listed below and/or described in R.C. 109.572 (A)(1). Said notification of parents will identify the volunteer by name and will indicate that the Board has decided to continue to let the volunteer work with school children unsupervised on a regular basis. This notification shall be given to the parents on the date that the Board decides to continue to use the individual as a volunteer or the date when service to school children by the individual commences, whichever is later. [NOTE: THIS CHOICE NOT RECOMMENDED]~~

[END OF OPTIONS]

The Superintendent shall inform each volunteer of the District's appreciation for **their/his/her** time and efforts in assisting in the operation of the schools and for **their/his/her** understanding with regard to the need for all volunteers to be subject to possible criminal records check.

Offenses

No person is to be accepted or maintained **[NOTE: THIS SHOULD BE MODIFIED IF SECOND OPTION IN PRECEDING SECTION IS ELECTED]** as a volunteer if **they have/s/he has** been convicted of any of the following offenses:

- A. aggravated murder, murder, voluntary manslaughter, involuntary manslaughter
- B. felonious assault, aggravated assault, assault
- C. failing to provide for a functionally impaired person
- D. aggravated menacing
- E. patient abuse or neglect
- F. kidnapping, abduction, child stealing, criminal child enticement
- G. rape, sexual battery, corruption of a minor, gross sexual imposition, sexual imposition, importuning, voyeurism, public indecency, felonious sexual penetration, compelling prostitution, promoting prostitution, procuring prostitution, disseminating matter harmful to juveniles, pandering obscenity, pandering obscenity involving a minor, pandering sexually oriented matter involving a minor, illegal use of minor in nudity-oriented material or performance

- H. aggravated robbery, robbery
- I. aggravated burglary, burglary
- J. abortion without informed consent
- K. endangering children
- L. contributing to the delinquency of children
- M. domestic violence
- N. carrying concealed weapons, having weapons while under disability, improperly discharging firearm at or into a habitation or school
- O. corrupting another with drugs
- P. trafficking in drugs
- Q. illegal manufacture of drugs or cultivation of marijuana
- R. funding of drug or marijuana trafficking
- S. illegal administration or distribution of anabolic steroids
- T. drug possession offenses (that are not a minor drug possession offense)
- U. placing harmful objects in or adulterating food or confection
- V. (☒) a felony
- W. (☒) an offense of violence
- X. (☒) a theft offense (as defined in R.C. 2913.01)
- Y. (☒) a drug offense (as defined in R.C. 2925.01, that is not a minor misdemeanor)

A.C. 3301-27-01
R.C. 109.572, 109.574-7, 121.401-2, 3313.203, 3319.321, 3327.16
20 U.S.C. 1232g
34 C.F.R. Part 99
OHSAA Bylaw 6-1-2; General Regulation 4

© Neola 2023

Legal	A.C. 3301-27-01 R.C. 109.572, 109.574-7, 121.401-2, 3313.203, 3319.321, 3327.16 20 U.S.C. 1232g 34 C.F.R. Part 99 OHSAA Bylaw 6-1-2; General Regulation 4
-------	---